

25STCP04987 25STCP04987

County: los-angeles

Division: Civil Law and Motion

Department: 309

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Case Number: 25STCP04987 Hearing Date: July 29, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

309

TENTATIVE RULING

R. WESTERN MONROE

vs.

CITY OF SANTA

CLARITA

Case

No.: 25STCP04987

Hearing Date: July 29, 2026

Wiley Canyon

LLC's motion to dismiss is GRANTED.

On

12/24/2025, pro per Plaintiff R. Weston Monroe (Plaintiff) filed a petition for writ of mandate against City of Santa Clarita (the City).

On 4/7/2026,

Specially appearing Wiley Cyn, LLC (Wiley) moved to dismiss Petitioner's petition for writ of mandate, and to vacate Petitioner's amendment to the Petition (incorrect name).

Discussion

Wiley

moves to dismiss this action on the grounds that the petition presents a fatal, jurisdictional failure to comply with the mandatory requirements of the California Environmental Quality Act (CEQA, Pub. Resources Code, §§ 21000, et seq.).

CEQA sets

forth a bright-line rule requiring a petitioner to name as a real party in interest any recipient of an approval identified in the Notice of Determination ("NOD"). (Pub. Resources Code, §§ 21167.6.5, subd. (a).)

Here, the NOD

filed by the City of Santa Clarita (City) identified Wiley Canyon, LLC as the Project applicant. However, Petitioner failed to name Wiley Canyon, LLC—or any iteration of that name—anywhere in the Petition. Instead, Petitioner: (i) named a completely unrelated third party LLC (Royal Clark Development Company LLC) in the caption; (ii) failed to name any real party in the body of the Petition; (iii) omitted any charging allegations against any Real Party in the Petition; and (iv) did not include any DOE defendants in either the caption or the body of the Petition.

Recognizing

these defects after the CEQA 30-day statute of limitations expired, Petitioner attempted to address the defect by filing an ex parte Amendment to Complaint (Incorrect Name) on 2/3/2026. In that filing, Petitioner sought to correct the name of the Real Party to Wiley Canyon, LLC and, for the first time, purported to add DOES 1-20.

However, the

Court agrees this is ineffectual for three reasons. First, substituting one distinct legal entity for another is not the correction of an "incorrect name" under section 473 of the Code of Civil Procedure; it is the addition of a new party after the statute of limitations has expired.

Second,

Petitioner cannot “correct” a name to include DOES 1-20 when the original, filed Petition contained no named DOE defendants, nor any DOE allegations or causes of action against them. (See CCP § 474 [“When the plaintiff is ignorant of the name of the defendant, he must state that fact in the complaint, . . . and such defendant may be designated in any pleading . . . by any name, and when his true name is discovered, the pleading . . . must be amended accordingly; . . . “.]

Third,

Wiley Canyon was not named in the original Petition—in any form—within the 30-day window following the NOD, as required by CEQA. (Pub. Resources Code § 21167.6.5; CCP § 389, subds. (a) and (b); Citizens for a Better Eureka v. City of Eureka (2025) 111 Cal.App.5th 1114, 1126.) Because Wiley is a necessary and indispensable real party in interest, and the CEQA 30-day statute of limitations bars Petitioner from curing this omission, the Petition must be dismissed. (Id; CCP § 389.)

Based

on the foregoing, Wiley’s motion to dismiss is granted.

It is so ordered.

Dated: July
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party’s email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this

tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.